A RESOLUTION AMENDING RESOLUTION NO. 13-297, AS AMENDED FOR MEADOW POINTE (F.K.A. TROUT CREEK) DEVELOPMENT OF REGIONAL IMPACT NO. 211 TO ALLOW FOR A CONVERSION OF EXISTING ENTITLEMENTS ON Parcel 4 Tract 2

WHEREAS, on October 9, 1973, the Pasco County Board of County Commissioners adopted by resolution a Development of Regional Impact (ORI) Development Order (DO) approving, with conditions, the Deerfield Village ORI; and,

WHEREAS, the DO was amended by the Board of County Commissioners by Resolution No. 89-10 dated October 11, 1988; Resolution No. 89-29 dated November 15, 1988; Resolution No. 89-69 dated January 4, 1989, rescinding Resolution Nos. 89-10 and 89-29; Resolution No. 90-32, a Substantial Deviation DO approved on November 21, 1989; ResolutionNo. 92-50 dated November 12, 1991; Resolution No. 97-98 dated December 10,1996; and Resolution 98-91 dated February 10,1998; Resolution 05-136 dated March 8, 2005; and Resolution
dated September 10, 2013.

WHEREAS, on October 22, 2020, filed a request for an amendment to the Development Order Amendment pursuant to Section 380.06(19)(e)(2)(k), Florida Statutes, requesting: (1) a conversion of existing entitlements on Parcel 4 Tract 2 from non residential/retail to a multi-family use; and

WHEREAS, the Planning and Development staff recommends approval of the amendment and

WHEREAS, the Applicant wishes to recognize the current build-out date and DO expiration dates of March 1, 2040 and March 1, 2040, respectively; and

WHEREAS, the Pasco County Board of County Commissioners as the governing body of the local government having jurisdiction pursuant to Chapter 380, Florida Statutes, is authorized and empowered to consider amendments to the ORI D0s; and

subsequent DO Amendments, and the Florida Department of Economic Opportunity and the Tampa Bay Regional Planning Commission recognize the access should have been considered; and

WHEREAS, pursuant to Subparagraph 380.06(19)(e)2, Florida Statutes, a notice of proposed change application and public hearing are not required in order for the Board of County Commissioners to consider this DO amendment; and

WHEREAS, the Board of County Commissioners considered the DO Amendment at its meeting on _____2021; and

WHEREAS, the Board of County Commissioners has reviewed the DO Amendment as well as all related testimony and evidence submitted; and

WHEREAS, the Board of County Commissioners wishes at this time to amend the DO.

NOW, THEREFORE, BE IT RESOLVED by the Board of County Commissioners of Pasco County, Florida, in regular session duly assembled this _____ day of _____ 2021, that the DO Amendment for Meadow Pointe ORI as set forth below is hereby adopted by the Board of County Commissioners:

MEADOW POINTE DEVELOPMENT ORDER AMENDMENT

1. INTRODUCTION

This resolution shall constitute an amendment to the DO as previously amended.

2. FINDINGS OF FACT

a. The foregoing whereas clauses are hereby incorporated as Findings of Fact.

b. The Board of County Commissioners has received and considered various other reports and information including, but not limited to, the memoranda and attachments from the Planning and Development Department relating to this DO Amendment.

c. All parties were afforded the opportunity to present evidence and argument on all issues and submit rebuttal evidence.

d. The Development Order Amendment Application is incorporated into this DO by reference as Exhibit A.

3. CONCLUSIONS OF LAW

a. This DO Amendment is consistent with the applicable provisions of the_ Pasco County Land Development Code.

b. The DO Amendment is consistent with the applicable provisions of the adopted Pasco County Comprehensive Plan.

c. This DO Amendment is consistent with the applicable provisions of the State Comprehensive Plan.

d. This DO Amendment is not subject to a Notice of Proposed Change or additional regional review pursuant to Chapter 380, Florida Statutes.

4. ORDERED

Having made the above findings of fact and conclusions of law, the Meadow Pointe DO is hereby amended as follows:

a. The Development recognizes the current build-out date and DO expiration dates of March 1, 2040 and March 1, 2040, respectively;

b. Parcel 4; Tract 2; Phase 2 has 77,951 of commercial entitlements that can be converted to 294 multi-family units as an alternative development option.

5. EFFECTIVE DATE

This DO Amendment shall take effect upon transmittal to the Florida Department of Economic Opportunity (FDEO), the Tampa Bay Regional Planning Council (TBRPC), and the Applicant. The effectiveness of this DO Amendment shall be stayed by the filing of a notice of appeal pursuant to Section 380.07, Florida Statutes.

6. PROCEDURES

a. A Notice of Adoption of this Resolution shall be filed and recorded in the Public Record of Pasco County, Florida, in accordance with Section 380.06(14)(a), Florida Statutes, as amended.

b. The Clerk of the Board of County Commissioners shall return four (4) signed originals of this DO Amendment and one (1) signed original Notice of Adoption to the Pasco County Planning & Development Department. The Pasco County Planning and Development Department shall then send copies of each document to the FDEO, TBRPC, and to attorneys of record in these proceedings.

c. This DO Amendment shall be deemed rendered upon transmittal of copies to all recipients identified in Chapter 380, Florida Statutes.

7. SEVERABILITY

Each provision of this DO is material to the Board of County Commissioners approval of this DO. Accordingly, the provisions are not severable. In the event any section, subsection, sentence, clause, or provision of this resolution is declared illegal or invalid by a body with jurisdiction to make such determination, the remainder of the resolution shall be suspended until such time that the Board of County Commissioners modifies the DO to address the illegal or invalid provision; provided, however, that such suspension shall not exceed nine (9) months in duration and such determination shall not affect the validity of 1) Limited exemption entitlements or DRI entitlements for which a complete application has been submitted, or approval has been received, for a preliminary plan, preliminary site plan, plat, construction plan, Building Permit, or CO; or 2) any DRI mitigation committed to or performed as of the date the determination is made.

Notwithstanding the foregoing, the resolution shall not be suspended if the Applicant Developer and all affected successors or assigns agree to abide by all of the provisions of the resolution until an NOPC is adopted to modify the DO in order to address the illegal or invalid provision. NOPCs to the DO shall not be considered challenges to the DO, and decisions by the Board of County Commissioners regarding any NOPC or the like shall not have the effect of suspending the DO under any circumstances. Notwithstanding the foregoing, if a third party challenges any section, subsection, sentence, clause, or provision of this resolution and the challenged portion of the resolution is subsequently declared illegal or invalid, the resolution shall not be suspended and shall remain in full force and effect except for that portion declared illegal or invalid. If any section, subsection, sentence, clause, or provision of this resolution is declared illegal or invalid as the result of a third party challenge, the Applicant Developer shall cooperate with the County to amend this resolution to address the portion which has been declared invalid or illegal.

DONE AND RESOLVED this _____ day of 2021.

BOARD OF COUNTY COMMISSIONERS,
Pasco County, Florida

_____
Chairman

Clerk and Comptroller

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HIBITS

A. Development Order Amendment Application*

B. Legal Description

* incorporated by reference only and on file with the Planningand DevelopmentDepartment